

- RAG Learning

3A.4 US Supreme Court and Civil Rights

Politics — Edexcel (9PL0) — Component 3A: Comparative Politics — USA

Exam Tip: Component 3 has two routes. This is **3A (USA)**; the alternative is **3B (Global Politics)**. You sit one, never both.

The Supreme Court is the most powerful judiciary in the democratic world, and the contrast with the UK Supreme Court — which cannot strike down an Act of Parliament — is the single most examinable comparison on this paper.

Judicial review — the power to declare acts of Congress, the executive or the states unconstitutional and void.

Judicial activism — willingness to strike down law, revisit precedent and give effect to broad principle.

Judicial restraint — deference to the elected branches; narrow rulings; close adherence to precedent.

Originalism / strict constructionism — the Constitution means what it meant when adopted.

Living constitution / loose constructionism — meaning evolves with contemporary values.

Stare decisis — adherence to precedent.

Incorporation — applying the Bill of Rights against the states through the Fourteenth Amendment.

Affirmative action — preference for members of groups historically subject to discrimination.

Imperial judiciary — the charge that the Court has taken powers properly belonging to elected bodies.

1. Nature and role

Nine justices, appointed for life during good behaviour. The Court hears roughly 60–80 cases a year from thousands of petitions; it chooses its docket through the "rule of four" — four justices must agree to hear a case.

Judicial review appears nowhere in the Constitution. It was claimed by the Court itself in *Marbury v Madison* (1803), when Chief Justice Marshall held that it is "emphatically the province and duty of the judicial department to say what the law is", and that a law repugnant to the Constitution is void. The Court's most significant power therefore rests on its own assertion — accepted by the other branches for two centuries, and now as settled as anything in the constitutional order.

2. Appointment

Stage	Detail
Vacancy	Arises by death, retirement or removal — so timing is a matter of chance rather than of electoral outcome
Nomination	By the President, typically chosen for judicial philosophy as much as qualification
Judiciary Committee	Hearings, questioning, evidence, then a vote to report to the floor
Confirmation	Simple majority of the Senate since the filibuster for Supreme Court nominations was removed in 2017

Why confirmations became so contested

- **Life tenure.** A justice appointed in their fifties may serve thirty years or more, so one appointment fixes policy for a generation — stakes no election can reverse.
- **The Court decides divisive questions.** Abortion, guns, campaign finance, voting rights and affirmative action are settled judicially rather than legislatively.

- **The filibuster's removal.** A President whose party holds the Senate can confirm without any opposition support, removing the incentive to nominate a consensus candidate.
- **Norm erosion.** The refusal to consider the Garland nomination in 2016 and the rapid confirmation of Barrett in 2020 established that the process is governed by power rather than settled convention.

3. The Court and public policy

Case	Held
<i>Marbury v Madison</i> (1803)	Established judicial review
<i>McCulloch v Maryland</i> (1819)	Implied powers; federal supremacy within its sphere
<i>Dred Scott</i> (1857)	Black Americans could not be citizens — the Court at its worst
<i>Plessy v Ferguson</i> (1896)	"Separate but equal" — entrenched segregation for six decades
<i>Brown v Board of Education</i> (1954)	Segregation in public schools unconstitutional; overturned <i>Plessy</i>
<i>Gideon v Wainwright</i> (1963)	Right to counsel incorporated against the states
<i>Roe v Wade</i> (1973)	Constitutional right to abortion — overturned in 2022
<i>Citizens United v FEC</i> (2010)	Independent political spending is protected speech
<i>Obergefell v Hodges</i> (2015)	Same-sex marriage recognised nationally
<i>Shelby County v Holder</i> (2013)	Struck down the Voting Rights Act preclearance formula
<i>Dobbs v Jackson</i> (2022)	Overturned <i>Roe</i> ; returned abortion to the states

***Students for Fair Admissions*
(2023)**

Race-conscious university admissions violate equal protection

Why rulings do not always change practice

The Court has neither an army nor a budget and depends on the executive, the states and lower courts to implement. *Brown* met massive resistance across the South, and its follow-up requirement of desegregation "with all deliberate speed" was exploited to delay for years. Desegregation advanced decisively only once Congress passed the Civil Rights Act 1964 and the executive enforced it — which indicates the Court can remove a legal obstacle but cannot supply the enforcement that makes a right real.

4. Civil liberties and rights

- **The Bill of Rights** — the first ten amendments; incorporated against the states progressively through the Fourteenth Amendment's due process clause.
- **The Fourteenth Amendment** — due process and equal protection; the basis of most modern rights litigation.
- **Race and rights** — from *Dred Scott* and *Plessy* through *Brown*, the Civil Rights Act 1964 and the Voting Rights Act 1965, to *Shelby County* (2013), after which covered states enacted restrictions the Act had prevented.
- **Affirmative action** — *Bakke* (1978) prohibited quotas but allowed race as one factor; *Grutter* (2003) upheld this; *Students for Fair Admissions* (2023) effectively ended the practice.

The affirmative action debate

For: formal neutrality leaves intact the accumulated effects of generations of legal discrimination in education, housing and employment, so equal treatment from now on cannot produce equal outcomes. **Against:** classifying individuals by race to remedy racial discrimination is in tension with the equal protection principle the remedy invokes. The underlying disagreement is whether the Fourteenth Amendment requires colour-blindness or permits race-conscious remedies for race-based injustice — a question about what equality means.

5. Interpretations and debates

Is the Court too powerful?

Yes	No
Settles contested policy without electoral accountability; life tenure means voters cannot remove justices	It depends on others to enforce; it has neither force nor will but merely judgement
Article V is effectively unusable, so amendment cannot answer it in practice	Congress can legislate around statutory rulings; amendment can reverse constitutional ones
Its power rests on its own assertion in <i>Marbury</i>	It decides only cases brought before it; it cannot initiate
It has determined the scope of its own power by expanding justiciability	Its authority rests on public legitimacy, which partisan behaviour erodes — a real constraint

Is it political or judicial?

Nominated for philosophy, confirmed on party lines, deciding questions where outcomes track composition — *Dobbs* overturned a fifty-year precedent after a change in personnel rather than in law. Against that: it must reason from text and precedent, give public reasons, and justices frequently vote against the expectations of the President who appointed them; many decisions are unanimous. The distinction may be false: interpreting contested constitutional provisions cannot avoid judgements about values, which makes the Court unavoidably political in its consequences without making its method arbitrary.

Exam Tip: The activism/restraint distinction is worth handling carefully for AO3 marks. It describes a real difference in willingness to strike down law, but in practice the label is applied to rulings the speaker dislikes — the Warren Court's activism advanced civil rights,

and later conservative majorities have been equally willing to overturn precedent. Saying so shows you can evaluate the vocabulary, not just use it.

Quick recall

- Nine justices, life tenure, rule of four, ~60–80 cases a year
- *Marbury* 1803 established judicial review — which appears nowhere in the text
- Confirmation: simple majority since the 2017 filibuster removal; Garland 2016 and Barrett 2020 for norm erosion
- *Plessy* 1896 → *Brown* 1954; *Roe* 1973 → *Dobbs* 2022; *Shelby County* 2013; *Citizens United* 2010; *Obergefell* 2015
- Incorporation applies the Bill of Rights against the states via the Fourteenth Amendment
- Affirmative action: *Bakke* 1978, *Grutter* 2003, *SFFA* 2023
- The Court can remove a legal obstacle; it cannot supply enforcement
- UK contrast: declaration of incompatibility, not invalidation